

Kunal Bagarhatta S/O Shri Om Prakash ... vs Smt Shipra Sharma (Bagarhatta) W/O ... on 4 September, 2019

Bench: Mohammad Rafiq, Narendra Singh Dhaddha

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

(1) D. B. Civil Miscellaneous Appeal No. 2390/2018

Kunal Bagarhatta S/o Shri Om Prakash Bagarhatta, R/o 10/88,
Swarnpath, Mansarovar, Jaipur, Distt. Jaipur Rajasthan

----Appellant

Versus

Smt. Shipra Sharma Bagarhatta, W/o Kunal Bagarhatta And D/o
Surendra Kumar Sharma, B/c Brahmin, R/o House No. 1/26,
Shanti Kunj, Alwar, Distt. Alwar Rajasthan

----Respondent

Connected With (2) D. B. Civil Miscellaneous Appeal No. 3288/2018 Kunal Bagarhatta S/o Shri Om Prakash Bagarhatta, Aged About 36 Years, R/o 10/88, Swarnpath, Mansarovar, Jaipur, Distt. Jaipur (Rajasthan)(Mobile No. 9414096767). Presently Working And Residing At Czech Republic Prague

----Appellant Versus Smt Shipra Sharma (Bagarhatta) W/o Kunal Bagarhatta, Aged About 32 Years, D/o Surendra Kumar Sharma, B/c Brahmin, R/o House No. 1/26, Shanti Kunj, Alwar, Police Station Arawali Vihar, Alwar Distt. Alwar (Rajasthan)

----Respondent For Appellant(s) : Mr. Saransh Saini.

Mr. Kunal Bagarhatta, appellant in person.

For Respondent(s) : Mr. R.K. Mathur, Senior Counsel assisted by Mr. Ashish Kumar.

Mrs. Shipra Sharma (Bagarhatta), respondent in person.

HON'BLE MR. JUSTICE MOHAMMAD RAFIQ HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA Judgment 04/09/2019 Appeal No. 2390/2018 has been filed by the appellant Kunal Bagarhatta against order dated 06.04.2018 passed by the (2 of 7) [CMA-2390/2018] Family Court, Alwar (for short 'the Family Court') whereby application filed by the respondent-wife under Section 24 of the Hindu Marriage Act, 1955 (for short 'the Act') has been allowed and the appellant has been directed to pay to her a sum of Rs. 75,000/- per month as maintenance pendente lite.

Appeal No. 3288/2018 has also been filed by the appellant Kunal Bagarhatta against order dated 14.06.2018 passed by the Family Court whereby application filed by the appellant under Section 9 of the Act for restitution of conjugal rights has been dismissed in default/non-prosecution.

The respondent-wife filed petition for divorce under Section 13 of the Act (No. 612/2015) in the year 2015. The parties in this case were relegated to the mediation where efforts were made for amicable settlement between them, but the same failed. Subsequently, when these matters were listed before the Court, on persuasion of learned counsel appearing for both the parties, the parties have agreed to obtain a decree of divorce by mutual consent on permanent alimony in the sum of Rs. 40,00,000/- (Rupees Forty Lakhs) to be paid by the appellant-husband to the respondent-wife. Such understanding between the parties was also recorded by the Court in its order dated 07.08.2019:

"Both learned counsel jointly submit that the parties have compromised the dispute and they have decided to obtain the decree of divorce by mutual consent on permanent alimony of Rs.40,00,000/- to be paid by the husband to the wife. However, it is requested by learned counsel for the husband that the matters may be deferred to be listed on some other date to enable the husband to appear before this Court to sign the proceedings as he is staying in Prague in Czech Republic and he can appear before this Court on 03.09.2019.

List on 03.09.2019.

Learned counsel for the parties pray for time to file application for conversion of these proceedings into (3 of 7) [CMA-2390/2018] one under Section 13-B of the Hindu Marriage Act, 1955 for grant of decree of divorce by mutual consent and also to file settlement incorporating the conditions pursuant to which the parties shall withdraw/compromise the cases registered against each other."

After arrival of the appellant from Czech Republic, the parties have filed a joint application under Section 19 of the Family Court Act, 1984 read with Order 41 Rule 1 CPC and Section 13-B of the Act in Appeal No. 2390/2018 with the prayer that proceeding of the present appeals itself may be converted into proceedings under Section 13-B of the Act for grant of a decree of divorce by mutual consent.

Learned counsel for the parties have filed a deed of compromise along with the application, which has been jointly signed by the parties incorporating following terms of the settlement arrived at between the parties:

"TERMS & CONDITIONS OF THE COMPROMISE:

1. That the marriage of both the parties to this compromise taken place on 06.05.2013, however, from 18.10.2014 the parties are residing separately and between both the parties cases are pending as detailed out in succeeding paragraphs. Conciliation and negotiation taken place at various stages including at the stage of pending appeal before the Hon'ble High Court, both the parties agreed to have a decree of divorce and further that a permanent alimony be paid to the parties of Part-II by the party of Part-I to the tune of Ra. 40.00 lacs as full and final settlement

and to withdraw and/or to get quashed the pending cases.

2. That between both the parties to this compromise following cases are pending:-

S.No. Name of Court Case No. Title of Case Under Section

1. Family Court, Alwar 612/2015 Shipra Vs. 13(A)/27 of Kunal Hindu Marriage Act.

2. Family Court, Alwar 11/2018 Shipra Vs. S.24 of Hindu Kunal Marriage Act.

3. Family Court, Alwar 1/260/2016 Shipra Vs. S.125 (3) of Kunal Cr.P.C.

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4.	Family Court, Alwar	41/2018	Kunal Shipra	Vs. S.9 of Hindu Marriage Act.
5.	Addl. Civil Judge & Judicial Magistrate No.4, Alwar	59/2016	State Vs. Kunal	S.498A, 406, 377 of IPC
6.	Addl. Civil Judge & Judicial Magistrate No.1, Alwar	198/2016	Shipra Kunal	Vs. Domestic Violence
7.	Addl. Civil Judge & (I.A.) Judicial Magistrate No.1, Alwar		Shipra Kunal	Vs. Domestic Violence
8.	High Court	5223/2017	Kunal Shipra	Vs. 482 against 125 Cr.P.C.

3. That as agreed, the above referred cases would be withdrawn and/or get set aside by consent, cooperation and moving required application jointly.

4. That both the parties now agreed to get decree of divorce by mutual consent, for that an application is being moved under Section 13-B of Hindu Marriage Act before the Hon'ble Court, as directed.

5. That both the parties agreed further that for quashed the pending criminal case bearing No. 59/2016 titled State of Rajasthan V/s. Kunal Bagarhatta & Others as pending before the learned Judicial Magistrate No.4, Alwar, a Misc. Petition under Section 482 of Cr.P.C. be filed with the consent jointly by the parties before the Hon'ble High Court and accordingly said Criminal case be got quashed based on this compromise.

6. That all other cases either referred to above or pending consideration before any court/forum or authority would be withdrawn by both the parties on their own with due intimation to other party based on this compromise and both the parties hereby

agree specifically that if any other case has been filed or pending consideration on his/her behalf, same would be taken back.

7. That both the parties agree further that no other case/litigation would be initiated as against each other in any other court in India or outside of the Indian Territory and further that both the parties would abide by the terms and conditions of this deed of compromise.

8. That so far as the agreed amount of permanent alimony as agreed as full and final settlement over and above the maintenance part paid namely the amount of Rs.40.00 lacs would be paid by the Party of Part-I to the Party of Part-II, as under:-

(i) Rs.20.00 lacs through cheque bearing No.359295 dated 3.9.2019 drawn at UO Bank, Mansarovar Branch, Jaipur.

(ii) Rs.10.00 lacs through cheque bearing No.359296 dated 3.10.2019 drawn at UO Bank, Mansarovar Branch, Jaipur.

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(iii) Rs.10.00 lacs through cheque bearing No.359297 dated 3.11.2019 drawn at UO Bank, Mansarovar Branch, Jaipur.

9. That both the parties on the basis of compromise taken place withdraw all the allegations leveled by them as against each other and wherever such allegations are made, same would be treated as struck off the record/proceedings/file and further as if same are not made at all by the parties to this compromise and both the parties agree specifically that they will not use such allegations anywhere in future.

10. That after the grant of decree of divorce based on the present compromise, both the parties would be free to re-marry or live in the manner suited to them without any kind of interference by either of the parties and they shall not object in future after grant of decree of divorce in the life of each other under the garb of the proceedings/case filed or the marriage taken place.

11. That both the parties shall not claim any right, title or interest in properties of other parties, in future. This deed of compromise is executed, written and arrived at with free consent and soundness of the mind by the parties without any pressure or coercion. This deed be used by the parties to this compromise for necessary action which is to be taken for getting divorce petition decided or for that matter withdraw the cases or getting quashed the cases as agreed.

12. If cheque or any of cheques mentioned in para No.8 of this compromise comes to dishonour, it would be paid through DD within two days, on failure the first party is liable for prosecution of offence U/s 138 of N.I. Act and be liable for punishment of contempt of Courts Act before this Hon'ble Rajasthan High Court. It is also agreed that all cases settle on the basis of this compromise

would be revived by the second party. No amount shall be refunded/adjusted by second party.

13. That the bank guarantee as given by the party of Part-I before the learned Court below concerned shall come to an end automatically in view of the compromise and the Party of Part-I would be free to have the money back from the authority/bank concerned on automatic revocation of the bank guarantee.

Sd/
(Party of Part I)

Sd/
(Party of Part II)"

Both the parties are present in the Court and signed proceedings of the Court. They have been identified by their counsel. They have expressed their willingness to obtain decree of divorce by mutual consent.

Learned counsel for the parties jointly contended that marriage of the parties was solemnised on 06.05.2013 at Jaipur but (6 of 7) [CMA-2390/2018] the parties are living separately since 18.10.2014. Petition seeking divorce under Section 13 of the Act was filed way back in the year 2015 and therefore period of one year under Section 13-B of the Act has lapsed long back. Both the learned counsel pray that in the facts of the case the cooling off period of six months provided under Section 13B(2) of the Act may be waived. Learned counsel for the parties in support of their submission relied upon the judgments of the Supreme Court in Veena Vs. State Govt. of NCT, Delhi & Anr., (2011) 14 SCC 614, Devinder Singh Narula Vs. Meenakshi Nangia - (2012) 8 SCC 580, and Amardeep Singh Vs. Harveen Kaur - (2017) 8 SCC 746.

The appellant-husband has handed over to the respondent-wife in the Court three cheques; i.e. cheque dated 03.09.2019 of Rs. 20,00,000/-; cheque dated 03.10.2019 of Rs. 10,00,000/- and cheque dated 04.11.2019 of Rs. 10,00,000/-, all drawn on UCO Bank, Mansarovar Branch, Jaipur. The appellant undertakes to maintain sufficient balance in the bank account so as to enable the respondent to get all the three cheques encashed. It is made clear that if any of the cheques is bounced, the respondent would be at liberty to get this order recalled.

Learned counsel for the parties submit that pursuant to this order, the parties will get the complaint filed by the respondent- wife against the appellant-husband under Section 498-A, 406 and 377 IPC quashed on the basis of the compromise arrived at between the parties.

In Amardeep Singh, supra, the Supreme Court laid down that since the cooling off period mentioned in Section 13-B(2) is not mandatory but directory, it will be open to the court to (7 of 7) [CMA-2390/2018] exercise its discretion in the facts and circumstances of each case where there is no possibility of parties resuming cohabitation and there are chances of alternative rehabilitation.

In view of above, Appeal No. 3288/2018 is dismissed as not pressed. Joint application filed by the parties under Section 19 of the Family Court Act, 1984 read with Order 41 Rule 1 CPC and Section 13-B of the Act in Appeal No. 2390/2018 is allowed and the proceedings of aforesaid appeal are converted into proceedings under Section 13-B of the Act for grant of a decree of divorce by mutual

consent. The marriage of the appellant-husband and the respondent-wife solemnised on 06.05.2013 is therefore dissolved by mutual consent with immediate effect. Decree of divorce be prepared accordingly.

Pursuant to the settlement arrived at between the parties, learned counsel for the appellant submitted that the appellant does not press Appeal No. 3288/2018 as it has been rendered infructuous and he shall also withdraw the petition under Section 13 of the Act filed before the Family Court which has been now rendered infructuous.

Appeal No. 2390/2018 stands disposed of.

Office is directed to place a copy of this judgment on record of connected appeal.

(NARENDRA SINGH DHADDHA),J (MOHAMMAD RAFIQ),J MANOJ NARWANI /113-114
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